

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR N18
Hon. Scott A. Steiner

Date: July 22, 2026

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#	Case Name	Tentative
1.	2025-1514475 Toner vs. Aurora Heights, LLC	The motion by Plaintiffs Matthew Toner, Lawrence Toner, William Toner, Pauline Toner, and Kneebumps, Inc. ("Kneebumps") for an order striking paragraphs 7, 10, 11, 12, 13, 14, 16, 17, 18, 19, 20, 22, and 23, the prayer for relief paragraphs 1, 2, 3, 4, and 5, and Exhibit 1 from the Cross-Complaint filed by Defendants/Cross-Complainants Auror Heights, LLC, Ibilitit, Inc. and Bandera Land Company Inc. (collectively, "Cross-Complainants") is DENIED. Plaintiffs' request for the Court to take judicial notice of the Memorandum of Tenancy in Common Agreement recorded with the County Recorder's Office is granted; however, that does not mean the Court may take judicial notice of factual matters stated therein. (<i>Poseidon Development, Inc. v. Woodland Lane States, LLC</i> (2007) 152 Cal.App.4th 1106, 1117.) Courts may also take judicial notice of a variety of matters that can be deduced from the documents, such as the parties, dates, and legal consequences of a series of recorded documents relating to a real estate transaction. (<i>Fontenot v. Wells Fargo Bank, N.A.</i> (2011) 198 Cal.App.4th 256, 264-265.) <u>General legal authority</u>

Pursuant to Code of Civil Procedure section 436, the Court may:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

“[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Standing

Cross-Complainants contend the Plaintiffs Matthew Toner, Lawrence Toner, William Toner, and Pauline Toner lack standing to bring this cross-complaint.

“A party served with a cross-complaint may within 30 days after service move, demur, or otherwise plead to the cross-complaint in the same manner as to an original complaint.” (Code Civ. Proc., § 432.10.) “Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(1).)

“A cross-complaint is generally considered to be a separate action from that initiated by the complaint.” (*Ohio Casualty Ins. Group v. Superior Court* (1994) 30 Cal.App.4th 444, 448; *see, Shearer v. United California Theatres* (1955) 133 Cal.App.2d 720, 723 [“cross-actions are distinct and independent causes of action.”].)

Plaintiffs Matthew Toner, Lawrence Toner, William Toner, and Pauline Toner have not shown they may move to strike the cross-complaint. They are not parties to this cross-complaint. Plaintiffs provide no legal authority to show they may move to strike the cross-complaint, a pleading to which they are not identified as parties. Accordingly, the motion to strike as requested by these plaintiffs is denied. (Code Civ. Proc., § 435, subd. (b)(1); *see, Code Civ. Proc.*, § 430.10 [“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading.”].)

Paragraphs 7, 10, 11, 12, 13, 14, 16, 17, 18, 19, 20, 22, and 23, the prayer for relief paragraphs 1, 2, 3, 4, and 5, and Exhibit 1

Kneebumps contends the specified paragraphs, requested prayers for relief, and Exhibit 1 should be stricken because the recorded Memorandum of Tenancy in Common Agreement (“Memorandum”) was not recorded with the Tenancy in Common Agreement (“TIC Agreement”), nor was the TIC Agreement signed, and that Cross-Complainants are not allowed to rely on TIC Agreement. Kneebumps contend the allegations are false because Cross-Complainants attempt to incorporate the unsigned TIC Agreement as an executed document to the Memorandum. Kneebumps also contends the recorded Memorandum is different than the Memorandum attached to the Cross-Complaint.

The Court notes Cross-Complainants served and filed a notice of errata regarding Exhibit 1 on March 24, 2026. (Notice of Errata, ROA No. 66.) The Court notes no difference between the Memorandum in Kneebumps’ Reply Request for Judicial Notice and the Memorandum included in the Notice of Errata. (ROA No. 66 and 410.)

Cross-Complainants allege the TIC Agreement was entered into by Cross-Complainants’ predecessors in interest, the Martins and Pro Life Toner, Inc., and was signed by Thomas P. Toner on behalf of Pro Life Toner, Inc. (Cross-Complaint, ¶ 7.) Although the TIC Agreement attached as part of the original Exhibit 1 to the Cross-Complaint was not signed, the Cross-Complainant alleges there is a signed version and also alleges the terms at issue. (*Id.*, ¶¶ 7 and 10-14.) In addition, the copy of the Memorandum in Cross-Complainants’ Notice of Errata does not include any copy of the TIC Agreement. Assuming the truth of the allegations in the Cross-Complaint, Cross-Complainants sufficiently alleged the existence of an executed TIC Agreement. The Court may not consider Kneebumps’ contention that Cross-Complainants have not been able to provide a fully executed copy.

Because the Court considers the allegations as true, the Court need not reach the merits of the statute of frauds or parole evidence rule arguments.

Accordingly, Kneebumps’ motion is denied.

Kneebumps shall serve and file an answer to the Cross-Complaint within 15 days.

Cross-Complainants shall give notice.

2.	2023-1320424 Cardenas Villegas vs. American Honda Motor Co., Inc.	Defendant American Honda Motor Co., Inc. seeks an order striking or taxing plaintiffs Juan and Maricela Cardenas' costs is denied. [ROA #109.] <u>Facts</u> This was a Song Beverly action. It was filed on 4/18/23. [Complaint (ROA #2).] On 2/13/24, Defendant served Plaintiffs with a 998 offer for \$100,000 and attorneys' fees of either \$15,000 or pursuant to motion. [Workman Decl. (ROA #109), ¶ 3 and Ex. A.] Plaintiffs did not accept this 998 offer. [<i>Id.</i>] Over year later, on 9/11/25 Defendants served Plaintiffs with a second 998 offer for \$100,000 and attorneys' fees pursuant to motion. [<i>Id.</i>, ¶ 4 and Ex. B.] Plaintiffs accepted this offer on 10/9/25. [<i>Id.</i>] Plaintiffs filed a notice of settlement on 10/9/25. [ROA #93.] On 5/1/25, Plaintiffs filed a memorandum of costs seeking to recover \$11,703.54 in costs. [ROA #101.] <u>Legal Standard</u> The prevailing party in any civil action is entitled to recover costs as a matter of right. Code Civ. Proc. §1032. To claim those, the prevailing party must file and serve a memorandum of costs within 15 days from the date the clerk (or any party) mails out notice of dismissal or entry of judgment. CRC 3.1700; <i>Daniels v. Robbins</i> (2010) 182 Cal.App.4th 204, 228. The memorandum must include a supporting declaration affirming that the costs were reasonable and necessarily incurred. CRC 3.1700(a)(1). No proposed judgment is required in order to perfect the memo of costs. <i>Fries v. Rite Aid Corp.</i> (2009) 173 Cal.App.4th 182, 185. If the items in the cost bill appear on their face to be proper (by comparing the cost bill to the list of recoverable costs in CCP §1033.5), the verified memorandum of costs is <i>prima facie</i> evidence of their propriety. The burden then rests with the party seeking to tax costs to show they were improper, unreasonable, or unnecessary. <i>Benach v. County of Los Angeles</i> (2007) 149 Cal.App.4th 836, 856. If the party seeking to tax costs makes a proper objection to an item in the cost bill (as determined after the trial court reviews the submissions), the burden then shifts back to the party claiming them as costs. <i>Acosta v. SI Corp.</i> (2005) 129 Cal.App.4th 1370, 1380. The propriety of costs is a question of fact to be determined by the trial court. <i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266. An order denying a motion to tax costs, in whole or in part, means
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		that the moving party must pay the costs allowed. <i>Krikorian Premiere Theatres, LLC v. Westminster Central, LLC</i> (2011) 193 Cal.App.4th 1075, 1084. <u>Discussion</u> Code of Civil Procedure section 998(a) provides that “[t]he costs allowed under Sections 1031 and 1032 shall be withheld or augmented as provided in this section.” Defendant argues that under section 998 Plaintiffs cannot recover costs incurred after the first 998 offer because they did not do better than that offer when they accepted the second 998 offer. Code of Civil Procedure section 998(c)(1) provides: If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs But case law addressing issues created when multiple 998 offers are served on the same party have found that as a matter of contract law, where the first 998 offer is not accepted, a second 998 offer extinguishes the first offer. <i>Wilson v. Wal-Mart Stores</i> (1999) 72 Cal.App.4th 382, 391 (“the legislative purpose of section 998 is generally better served by a bright line rule in which the parties know that any judgment will be measured against a single valid statutory offer”). <i>See also Varney Entertainment Group v. Avon Plastics</i> (2021) 61 Cal.App.5th 222, 235 (finding defendant's offer to enter into a stipulated judgment on breach of contract cause of action extinguished defendant's pending C.C.P. 998 offer that covered all causes of action). Defendant has provided no discussion or explanation why this authority would not apply here. Accordingly, the motion to strike or tax Plaintiff's costs is denied.
3.	2023-1363467 Manoussi vs. Sterling Infosystems, Inc.	Before the Court is Plaintiffs Azadeh Manoussi and Kaveh Vakilzadeh's Motion to allow them to withdraw from arbitration pursuant to CCP § 1281.97(b)(l) and for monetary sanctions. The Court, however, only sees the Notice of Motion filed as ROA 131. There does not appear to be a memorandum of points and authorities filed. Nor does the Court see the referenced Declaration of Tyler M. Vance. It appears that these documents were properly and timely served, as the opposition is made on the merits.

		Thus, the Court orders Plaintiffs to file the memorandum and declaration(s) that were timely served on Defendants <i>prior to the hearing on this Motion</i>.
4.	2026-1558154 BP Holdings RHO LLC vs. Duan	The Court grants Plaintiff BP Holdings RHO LLC's Motion pursuant to Code of Civil Procedure Section 425.16 subdivision (g) for leave to conduct discovery relevant to Plaintiff's oppositions to Defendant Sinan Duan's Special Motion to Strike (Anti-SLAPP) filed 5/14/26 and Defendant Crystal Chen's Motion to Expunge Lis Pendens (filed 4/23/26), as set forth below. <u>Request for Judicial Notice</u> Defendant's unopposed request to judicially notice his Petition for Dissolution of Marriage in the Orange County Superior Court, Case No. 20D001282, on February 14, 2020, filed by Duan, is granted. <u>Legal Standard</u> Unless the court orders otherwise for "good cause shown," all discovery proceedings shall be stayed upon filing of a notice of motion under CCP § 425.16. The stay remains in effect until notice of entry of order ruling on the motion. (CCP § 425.16(g); <i>see Britts v. Sup.Ct. (Berg & Berg Enterprises, LLC)</i> (2006) 145 Cal.App.4th 1112, 1129—court has no inherent power to rule on pending discovery motion or to allow discovery while anti-SLAPP motion pending, absent a noticed motion under CCP § 425.16(g).) Because a CCP § 425.16 motion may be made within 60 days after service of the complaint (and must be heard within 30 days thereafter), plaintiff may need additional discovery to oppose defendant's motion. If so, it must move for an order allowing such discovery (and, if necessary, a continuance of the hearing). It cannot merely oppose the motion for lack of opportunity to obtain such information. (<i>Lafayette Morehouse, Inc. v. Chronicle Publishing Co.</i> (1995) 37 Cal.App.4th 855, 867; <i>Robertson v. Rodriguez</i> (1995) 36 Cal.App.4th 347, 357.) "Good cause" is required for discovery while an anti-SLAPP motion is pending. (CCP § 425.16(g).) To satisfy this requirement, plaintiff must explain what additional facts it expects to uncover and why the discovery is necessary to carry its burden on the anti-SLAPP motion. "Conclusory comments by counsel that the evidence requested ... would somehow 'fill' unspecified evidentiary gaps was not a sufficient explanation." (<i>Six4Three, LLC v. Facebook, Inc.</i> (2025) 109 Cal.App.5th 635, 659.)

Further, plaintiff must make a prima facie showing at least as to the elements of the claim for which no discovery should be needed. (*Paterno v. Sup.Ct. (Ampersand Publishing)* (2008) 163 Cal.App.4th 1342, 1349.)

If discovery is allowed, it will be limited to the issues raised by the anti-SLAPP motion; i.e., matters that may help plaintiff establish a “reasonable probability of prevailing” on the claim, rather than merely matters to impeach defendant's credibility. (*Sipple v. Foundation for Nat'l Progress* (1999) 71 Cal.App.4th 226, 247.)

Even if good cause exists for discovery on some element of the prima facie case, discovery may be refused if there is no reasonable probability the court will ever reach that issue. (*Garment Workers Ctr. v. Sup.Ct. (Fashion 21, Inc.)* (2004) 117 Cal.App.4th 1156, 1162—error to allow discovery on malice element of malicious prosecution claim where alleged falsity of publications could be resolvable as matter of law, obviating need for discovery; *Tutor-Saliba Corp. v. Herrera* (2006) 136 Cal.App.4th 604, 618—court properly refused to allow discovery necessary to establish prima facie case of defamation where alleged defamation was absolutely privileged.)

Merits

Plaintiff asks for leave to conduct specific discovery from Defendants prior to the deadline to file the opposition to the Anti-SLAPP motion. “Good cause” is required for discovery while an anti-SLAPP motion is pending. (CCP § 425.16(g).)

As set forth above, to satisfy this requirement, plaintiff must explain what additional facts it expects to uncover and why the discovery is necessary to carry its burden on the anti-SLAPP motion.

In opposition, Defendant argues that the argument in the Anti-SLAPP motion is that the litigation privilege bars the Complaint in this case, so discovery is irrelevant to the issues raised.

However, the litigation privilege does not necessarily bar a claim for violation of the Uniform Voidable Transactions Act (UVTA) (§ 3439 et seq.).

“The purpose of the UVTA is to prevent debtors from placing, beyond the reach of creditors, property that should be made available to satisfy a debt.” (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 817.) In furtherance of the state's “general policy of protecting creditors from fraudulent transfers, including transfers between spouses,” the UVTA applies to property transfers made

pursuant to a marital settlement agreement incorporated into a judgment of dissolution. (Mejia v. Reed (2003) 31 Cal.4th 657, 668, 3 Cal.Rptr.3d 390, 74 P.3d 166.)

Whether a debtor had the actual intent to hinder, delay, or defraud a creditor is a question of fact. (*Nautilus, Inc. v. Yang* (2017) 11 Cal.App.5th 33, 40; *Annod Corp. v. Hamilton & Samuels* (2002) 100 Cal.App.4th 1286, 1294.)

To state a cause of action for fraudulent transfer under section 3439.04, subdivision (a)(1), they are not required to allege that Shahan failed to receive a reasonably equivalent value for the properties he transferred; it is sufficient to allege that the defendant made the transfer “with ‘actual intent to hinder, delay, or defraud any creditor of the debtor.’” (*Optional Capital, Inc. v. DAS Corp.* (2014) 222 Cal.App.4th 1388, 1401.)

Chen v. Berenjian (2019) 33 Cal.App.5th 811 is instructive.

“Under the UVTA, it is the *transfer* made or the obligation incurred by the debtor which, when made with the requisite intent or without sufficient consideration, is wrongful and, therefore, voidable. [Citation.] Thus, the acts causing injury to Chen were the agreement to defraud him and the transfer of the [property] from Shazad to Sharmad by means of executing on [Sharmad's] judgment. The acts of filing the sham complaint and agreeing to the stipulated judgment, though communicative in nature, were not the gravamen of Chen's fraudulent transfer cause of action.... [Sharmad's] levy was the allegedly voidable transfer producing the injury and was, therefore, the gravamen of the cause of action for fraudulent conveyance.”

(*Chen*, at p. 821.)

Levying on property as part of a scheme to defeat a creditor's rights in violation of the UVTA is not communicative conduct; therefore, extending the litigation privilege to such conduct advances none of the privilege's purposes. [¶] The UVTA serves the valuable purpose of protecting creditors from schemes to place assets beyond their reach.” (*Chen, supra*, 33 Cal.App.5th at pp. 821–822.) The court concluded that if it extended the litigation privilege to the facts alleged by Chen, it “would be providing a road map to circumventing the UVTA and defeating the rights of creditors.” (*Id.* at p. 822.)

Thus, the Court in *Chen, supra*, held that the litigation privilege did not bar the Complaint. (See also *Aghaian v. Minassian* (2020) 59 Cal.App.5th 447, 458, court held that a sham dissolution proceeding

and stipulated judgment was not barred by the litigation privilege because the conduct was not communicative.)

For purposes of this Motion, the Court looks to the second step of the Motion to decide the issue of minimal merit. “Once the court determines the first prong of the statute has been met, a plaintiff must provide the court with sufficient evidence to permit the court to determine whether ‘there is a probability that the plaintiff will prevail on the claim.’ (CCP § 425.16, subd. (b)(1).)” (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 568.)

Here, if Plaintiff establishes in its opposition that the fraudulent transfer claims have minimal merit, then *Chen, supra*, 33 Cal.App.5th 811 and *Aghaian, supra*, 59 Cal.App.5th 447 are persuasive authority that the litigation privilege would not bar Plaintiff’s claims asserted here.

Thus, the Court finds that Plaintiff has shown good cause.

The final issue is the scope of the discovery. Plaintiff asks for the following discovery:

1. Duan RFPs re: financial condition and income – Plaintiff wants tax returns, bank statements, income records for 2022-2026
2. Duan and Chen RFPs re: negotiation of Marital Settlement Agreement - Drafts, emails, text messages between counsel
3. Communications between Duan and Chen - Text messages, emails
4. Subpoena to Blonska (Duan’s divorce attorney) - File, communications, billing records
5. Subpoena to Shaw/Salisbury (Chen's divorce attorney) - File, communications, billing records
6. Defendants’ depositions

In response, Defendant argues that seeking the client files should not be permitted because they are protected by the attorney-client privilege / work product documents.

While this is likely true, Plaintiff can propound the limited discovery seeking the above-delineated documents and testimony, opposing parties and third-parties can object as necessary. After a meet and confer effort, the matters can be submitted to the Court for adjudication if needed.

Thus, the Motion is granted.

		Plaintiff shall conduct new, limited discovery as delineated above. The Court continues the hearing on the Anti-SLAPP and the Motion to expunge lis pendens until January 20, 2027. Opposition and reply deadlines will be per code tracking the new hearing date. Plaintiff shall serve notice of this Order.
5.	2024-1404974 SINGSON vs. JAGUAR LAND ROVER NORTH AMERICA, LLC	Plaintiff Daisy Singson's motion for attorney fees and costs against Defendant Jaguar Land Rover North America, LLC is granted in part as set forth below. Plaintiff is awarded fees in the total amount of \$42,134.18. Plaintiff obtained a settlement against Defendant for the repurchase of her vehicle. Based on this, Plaintiff seeks attorney fees in the amount of \$52,567.86 plus a 1.2 multiplier for a total of \$62,130.08. It is within the court's discretion to decide which of the hours expended by the attorneys were "reasonably spent" on the litigation. (<i>Meister v. Regents of University of California</i> (1998) 67 Cal.App.4th 437, 449.) Additionally, a trial court has broad discretion to determine the amount of reasonable attorney's fees, as an experienced trial judge is in the best position to decide [the] value of professional services rendered in court. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) In challenges to the reasonableness of the number of hours billed, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (<i>Premier Med. Mgmt. Sys., Inc. v. Cal.Ins. Guarantee Ass'n</i> (2008) 163 Cal.App.4th 550, 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Id.</i>) Plaintiff's counsel's billing rates ranged from \$430-\$625. (Diamse Decl., ¶ 76.) Based on the billing records (Ex. A), there were very few entries reflecting rates of over \$500. The Court thus finds that Plaintiff's counsel's rates are reasonable, especially given the allocation of work noted above. In determining this, the Court took into account the relative experience of counsel, the legal questions presented, nature of Plaintiff's claims, and skill of representation. Based on counsel's billing statements, the Court finds that \$42,134.18 is a reasonable amount of attorney fees in this matter and awards this amount.

		In reaching this number, the Court deducted the time spent on prelitigation tasks, some duplicative tasks, research on law that should already be known, and a motion that was never filed. The Court declines to award a multiplier, as it does not find that the issues in this matter were novel or difficult at all. (See <i>Robertson v. Fleetwood Travel Trailers</i> (2006) 144 Cal. App. 4th 785, 819.) A fee enhancement is entirely discretionary. (See <i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, 247-48.) Plaintiff is additionally awarded her costs in the amount of \$4,755.68, as these are not challenged by Defendant. Plaintiff shall give notice of the ruling.
6.	2025-1536771 Nguyen vs. Coast Community College District	Petitioner Mary Nguyen’s motion for or preliminary injunction is denied. [ROA #72.] <u>Legal Standard</u> Code Civ. Proc. § 526(a)(3) provides that an injunction may be granted: “When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual.” See <i>San Francisco Newspaper Printing Co., Inc. v. Superior Court</i> (1985) 170 Cal.App.3d 438, 442, and Rutter, <i>Civil Procedure Before Trial</i>, Section 9:528. The purpose of Section 526(a)(3) is to preserve the status quo pending litigation. See, <i>Stockton v. Newman</i> (1957) 148 Cal. App. 2d 558, 563. A plaintiff seeking a preliminary injunction must demonstrate (1) a likelihood of prevailing on the merits, and (2) the threat of irreparable injury. See <i>Jessen v. Keystone Savings and Loan Assoc.</i> (1983) 142 Cal. App. 3d 454, 459. If plaintiff fails to establish either element, a preliminary injunction should be denied. <i>Id.</i> To establish a likelihood of prevailing on the merits, the moving party must present evidence demonstrating a probability of prevailing on the merits. This is customarily done by affidavits or declarations, although a verified complaint and other discovery can be considered. See <i>Continental Baking Co. v. Katz</i> (1968) 68 Cal. 2d 512, 527, and Rutter, <i>Civil Procedure Before Trial</i>, Section 9:574 to 9:581. In addition, the moving party also has the burden of showing that irreparable harm will be suffered if the injunction is not issued. See,

Tiburon v. Northwestern Pacific Railroad Co. (1970) 4 Cal.App.3d 160, 179. Under California law, if monetary damages provide an adequate remedy then injunctive relief cannot be granted. See *Thayer Plymouth Center Inc. v. Chrysler Motor Corp.* (1967) 255 Cal. App. 2d 300, 306.

Further, "... in deciding whether to issue a preliminary injunction, a trial court weighs two interrelated factors: the likelihood the moving party ultimately will prevail on the merits, and the relative harm to the parties from the issuance or nonissuance of the injunction. (Citation omitted.)" See *Hunt v. Superior Court* (1999) 21 Cal. App. 4th 984, 999.

Finally, in *Butt v. State of California* (1992) 4 Cal. 4th 668, the Supreme Court discussed the elements for issuance of an injunction, stating: "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." *Id.* at 678. Nevertheless, the *Butt* court further noted that: "A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (Citation omitted.)" *Id.* Thus, when irreparable harm is clearly shown, a lesser showing as to prevailing on the merits is required, and the converse is also true.

An injunction is mandatory if it compels performance of an affirmative act that changes the position of the parties. *Davenport v. Blue Cross of California* (1997) 52 Cal. App. 4th 435, 448. The nature of injunction is determined by its substance not its form. *Agricultural Labor Relations Board v. Superior Court* (1983) 149 Cal. App. 3d 709, 713 (finding injunction restraining employer from "refusing to reinstate" worker was in fact mandatory injunction requiring employer to rehire worker).

"A preliminary mandatory injunction is rarely granted, and is subject to stricter review on appeal. The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established." *Shoemaker v. County of Los Angeles* (1995), 37 Cal. App. 4th 618, 625 (internal quotations omitted).

In *Paramount Pictures Corp. v. Davis* (1964) 228 Cal. App. 2d 827, 838-39, the court in a breach of contract case stated that a preliminary injunction having the effect of granting the litigant all injunctive relief requested in its complaint and accomplishing the main purpose of the action in advance of a trial on the merits will rarely issue.

		And, for what it is worth, a mandatory injunction is automatically stayed pending appeal. <i>Kettenhofen v. Superior Court</i> (1961) 55 Cal. 2d 189, 191; <i>Agricultural Labor Relations Board v. Superior Court</i>, <i>supra</i>, 149 Cal. App. 3d at 713. <u>Discussion</u> <i>Likelihood of Prevailing on the Merits</i> For her motion, Plaintiff describes her fall and injuries, further stating that her condition has worsened due to delays in treatment. [Motion MPA (ROA #72) at 5; Nguyen Decl. (ROA #68), ¶¶ 207.] She does not expressly discuss her causes of action or which one she is likely to prevail on that supports issuance of an injunction. Nor does she identify ongoing acts by Defendant that are obstructing Plaintiff's access to medical care. Defendant Coast Community College District contends that Plaintiff cannot show a likelihood of prevailing on what is essentially a premises liability action against a governmental entity because she has not complied with the Government Claims Act. Govt. Code §§ 835, 945.4, 950.2, 912.4. [Opp. (ROA #119) at 4-5.] Even if Plaintiff could and did show a likelihood of prevailing on her claims for liability for personal injury, it is unclear how or what right to injunctive relief against Defendant, rather than a claim for damages, this would give rise to. For the first time on reply Plaintiff suggests that the court issue a preservation order, but new requests for injunctive relief may not be raised on reply. Moreover, Plaintiff has provided no factual basis for such relief. <i>Irreparable Harm/Balance of Harm</i> If Plaintiff's conditioning is worsening due to delayed medical care, that is harm. But as discussed, there is no tie in with the claims asserted by Plaintiff or to any allegations of ongoing conduct by Defendant. There is no balance of harms to weighed because there is no showing of conduct of Defendant to be enjoined. For all the above reasons, the motion for preliminary injunction is denied.
7.	2024-1448174 Mourshaki vs. Farmers Insurance Company, INC	Defendant Farmers Insurance Exchange's ("Defendant") Motion for Summary Judgment on Plaintiff Abraham Mourshaki's ("Plaintiff") Complaint is granted. <u>Procedural Issues</u> Defendant's request for judicial notice (ROA 38) is granted. (Evid. Code, § 452, subd. (d).)

The Court declines to rule on Plaintiff's objections (ROA 75), because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Merits

Defendant moves, under CCP § 437c, for summary judgment on the Complaint or, in the alternative, summary adjudication on each of Plaintiff's three causes of action.

Legal Standard

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Application

The Court finds Defendant is entitled to summary judgment, because all of Plaintiff's causes of action are time-barred.

Insurance Code section 2071 states, in relevant part, that: "No suit or action on this policy for the recovery of any claim shall be

sustainable in any court of law or equity unless all the requirements of this policy shall have been complied with, and unless commenced within 12 months next after inception of the loss.” (Ins. Code, § 2071.) The purpose of the “shortened limitations period” in section 2017 is to “relieve insurance companies of the burden imposed by defending old, stale claims.” (*Aliberti v. Allstate Ins. Co.* (1999) 74 Cal.App.4th 138, 145.) The policy need not recite the language in section 2071 in verbatim in order to be enforceable. (See *State Farm Fire & Casualty Co. v. Superior Court* (1989) 210 Cal.App.3d 604, 610.)

The commencement of the limitations period is “determined by reference to reasonable discovery of the loss and not necessarily turn on the occurrence of the physical event causing the loss.” (*Prudential-LMI Com. Insurance v. Superior Court* (1990) 51 Cal.3d 674, 686.) “The statute is tolled from the time the insured gives notice of the claim to the insurance company until ‘the time the insurer formally denies the claim in writing.’” (*Migliore v. Mid-Century Ins. Co.* (2002) 97 Cal.App.4th 592, 604, citing *Prudential-LMI Com. Insurance*, supra, 51 Cal.3d at p. 678].)

Here, it is undisputed that the subject policy, in accordance with the Insurance Code, states: “Suit on or arising out of the Section I - Property Coverage of this policy must be brought within one year after inception of the loss or damage.” It is also undisputed that the water damage was discovered on 9/18/23. (UF no. 3.) Plaintiff reported the water loss to Defendant on 11/19/23. On 12/18/23, Defendant sent Plaintiff a letter, which provided in relevant part: “Unfortunately you have not met the conditions of your duty and we are unable to provide coverage for your claim based on the information known at this time”; and, “We’ve completed the adjustment of your loss and we are closing your claim.” (Although Plaintiff disputes the effect of this letter, he does not dispute that the letter includes such language.)

Based on the undisputed dates, the one-year limitations period began on 9/18/23 (when the water damage was discovered), but was tolled from 11/19/23 to 12/18/23 (the time the claim was made until the date it was denied). After taking into account the approximately two months from when the damage was discovered until the claim was made, that leaves approximately 10 months remaining in the one-year limitations period. The Court agrees Defendant unequivocally denied Plaintiff’s claim by the letter sent on 12/18/23. As such, the last day to bring this action expired on or about 10/18/24, which is approximately two months prior to the date that Plaintiff filed this action.

In his opposition, Plaintiff contends this action is timely, because there is a “triable issue of fact” regarding Defendant’s “proposition that the December 18, 2023 correspondence constituted an unequivocal denial of Plaintiff’s claim as a matter of law.” Plaintiff argues “Defendant’s own conduct after that date demonstrates otherwise,” because “Defendant continued requesting additional information from Plaintiff concerning the claim” and “Defendant’s own internal claim records” included the notation, “claim is still denied pending the documentation requested is received.” (Opp’n at pp. 6-7.)

This argument is not supported by the case authority. For example, in *Migliore v. Mid-Century Ins. Co.* (2002) 97 Cal.App.4th 592, the insured received a letter stating that no further benefits will be provided beyond those previously paid. The insured argued this was not an “unequivocal denial” because the letter did not use the words “deny” or “denied,” and “the letter ‘suggests’ that the claim remains open because appellant was ‘invited’ to submit further information for consideration.” (*Migliore v. Mid-Century Ins. Co.* (2002) 97 Cal.App.4th 592, 605.) The appellate court rejected this argument, finding that, even without the words “deny” or “denied,” the letter contained “unequivocal language that no further payment on the claim would be made.” The fact that the insurer expressed a willingness “to reconsider its denial upon receipt of further pertinent information” did not change the result, because “[a] statement of willingness to reconsider does not render a denial equivocal.” (*Ibid.*)

Likewise, in *Singh v. Allstate Ins. Co.* (1998) 63 Cal.App.4th 135, the appellate court found the plaintiffs’ claim was unequivocally denied where the “denial letter clearly informed plaintiffs they had one year within which to file suit,” notwithstanding the fact that the letter also “closed with the statement that, ‘[i]f there is any further information you would like us to consider, please do not hesitate to bring this information to our attention.’” (*Singh v. Allstate Ins. Co.* (1998) 63 Cal.App.4th 135, 138, 142.)

Federal authority applying California law has also reached the same result. (See, e.g., *Shugerman v. Allstate Ins. Co.* (C.D. Cal. 2009) 594 F.Supp.2d 1131, 1141 [subsequent correspondence between defendant and plaintiff’s counsel did not further toll the statute of limitations or otherwise estop defendant from raising the statute of limitations as an affirmative defense].)

Here, the 12/18/23 letter from Defendant to Plaintiff clearly stated: “we are *unable to provide coverage* for your claim based on the information known at this time”; “we have *completed* the adjustment of your loss”; and “we are *closing* your claim” (emphasis

added). Moreover, the letter actually used the word “denied” when it informed Plaintiff: “If you believe your claim has been wrongfully rejected or denied, in whole or in part, please contact us for further clarification.” Further, the letter also directed Plaintiff to the “one year” limitations period within which to bring a “Suit Against Us” and informed Plaintiff that it “will inform [him] in writing if any such additional information results in reopening your claim.” However, it is undisputed that Plaintiff was never informed that his claim would be reopened. Even if Defendant’s internal claim file stated that the Claim was “pending,” Defendant has not shown he justifiably relied on this representation, because there is no evidence that he was aware of the notations in his Claim file prior to filing suit, or that this was communicated to him. As such, Plaintiff’s breach of contract claim is time-barred.

Likewise, Plaintiff’s claim for breach of the implied covenant is time-barred, because it is inextricably intertwined with his breach of contract claim. This limitations period is applicable a claim for breach of the implied covenant where the “denial of the claim in the first instance is the alleged bad faith and the insured seeks policy benefits.” (*Velasquez v. Truck Ins. Exchange* (1991) 1 Cal.App.4th 712, 721 [“A bad faith action based on denial of a claim in the underlying policy is an action on the policy”].) By his second cause of action for breach of the implied covenant, Plaintiff alleges Defendant “breached the implied covenant of good faith and fair dealing by failing to conduct a reasonable investigation, wrongfully denying the claim without justification, and ignoring evidence provided by Plaintiff”; “Defendants acted in bad faith by denying the policy claim with prior knowledge of the inaccuracy.” (Compl. at ¶ 25.) Plaintiff’s bad faith claim is clearly “an action on the policy.” (See *Velasquez*, supra, 1 Cal.App.4th at p. 722 [breach of contract and bad faith claims “are inextricably bound” where “[n]one of the actions alleged by appellants as bad faith relate to events subsequent to initial policy coverage so as to convert their action from one on the policy to one which is not”].)

The one-year limitations period also applies to Plaintiff’s UCL claim, because Plaintiff admitted, in a request for admission, “that the only relief [he is] seeking under [his] cause of action for unfair business practices is the recovery of the policy benefits that” he claims he is owed “related to the subject September 2023 water loss.” (ROA 45—Exh. 3 at p. 6 [RFA no. 16].) Plaintiff tried to “dispute” this fact by citing his Complaint. (See Pl. Sep. St. at “DF” no. 33.) However, “a party cannot rely on the allegations of his or her own pleadings to make an evidentiary showing in support of or in opposition to a motion for summary judgment.” (*Gutierrez v. Girardi* (2011) 194 Cal.App.4th 925, 933.) Further, Plaintiff’s admission to this request has the evidentiary effect of preclusively

		establishing this “fact” against Plaintiff, who has not sought, or received, leave to amend this admission. (Code Civ. Proc., § 2033.410, subd. (a).) Because Plaintiff is seeking to recover damages by his UCL claim, the UCL claim is “inextricably bound” to the denial of coverage, and the one-year limitations period applies. (Accord <i>Rosenberg-Wohl v. State Farm Fire & Casualty Co.</i> (2024) 16 Cal.5th 520, 536.) Accordingly, the Court finds that all of Plaintiff’s claims are time-barred, and Defendant is entitled to summary judgment. Defendant’s alternative motion for summary adjudication is moot. Defendant shall give notice of the ruling and submit a proposed judgment to the court and serve it upon all parties. The Jury Trial scheduled for 11/30/26 is vacated.
8.	2025-1478659 Esquivel vs. Toyota Motor Sales, U.S.A., INC	Defendant Toyota Motor Sales, U.S.A., Inc. (“Toyota”) demurs generally to the sixth cause of action for fraudulent inducement – concealment in the First Amended Complaint (“FAC”) filed by Plaintiffs Griselda Esquivel and Beyond Resource Solutions (collectively, “Plaintiff”). Toyota also seeks an order striking Plaintiffs’ prayer for punitive damages in Plaintiffs’ FAC. As an initial matter, the Court notes that once again none of the parties’ proofs of service complied with CCP section 1013b. In addition, Toyota’s proofs of service for Toyota’s reply in support of Toyota demurrer and reply in support of Toyota’s motion to strike states the replies were electronically served to an email address that is not in the Court’s record for Plaintiff’s counsel (SLPCaseDocs+2T2BAMBA5PCO20730Esquivel@slpattorney.com). The Court issues its ruling subject to any objections regarding service of the reply papers. The Court also notes the FAC adds a new plaintiff, Beyond Resource Solutions. No party objected to the addition of the new plaintiff. DEMURRER TO FAC <u>Sixth cause of action for fraudulent inducement – concealment</u> “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (<i>Rattagan v. Uber Technologies</i>,

Inc. (2024) 17 Cal.5th 1, 40; *see, Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)...Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.’...’Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Rattagan v. Uber Technologies, Inc.*, 17 Cal.5th at 40-41; *see, Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 867 [“A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent.”].)

“There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]” (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336, citing *Heliotis v. Schuman* (1986) 181 Cal.App.3d 646, 651.)

“Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship.” (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843.)

Every element of fraud must be pleaded with specificity. The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) Nonetheless, "[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy." (*Committee on Children's Television*, 35 Cal. 3d at 216 [citation and internal quote marks omitted].)

"California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim...For instance, in a case such as this, the court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts, as Rattagan has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission." (*Rattagan v. Uber Technologies, Inc.*, 17 Cal.5th at 43-44.)

Plaintiffs did not allege sufficient facts with the necessary specificity to state this cause of action. (*See, Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844.) Accordingly, the demurrer is sustained with 15 days leave to amend.

MOTION TO STRIKE FAC

Toyota seeks an order striking Plaintiffs' prayer for punitive damages from the FAC.

Pursuant to Code of Civil Procedure section 436, the Court may:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

“[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiffs may recover exemplary damages in an action for the breach of an obligation not arising from contract if Plaintiffs proves by clear and convincing evidence that Toyota is “guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294, subd. (c)(1).) Oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294, subd. (c)(2).) Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).)

Punitive damages cannot be pled in conclusory terms, instead the facts supporting a claim for punitive damages must be set out clearly, concisely, and with particularity. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) However, “it has long been recognized that ‘(t)he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree.’” (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) “What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (*Id.*) In ruling on a motion to strike, the Court should “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *See Perkins*, 117 Cal.App.3d at 6 [“stricken language must be read not in isolation, but in the context of the facts alleged in the rest of petitioner’s complaint.”].)

		“When the defendant is a corporation, ‘[a]n award of punitive damages against a corporation...must rest on the malice of the corporation’s employees.’” (<i>Wilson v. Southern California Edison Co.</i> (2015) 234 Cal.App.4th 123, 164 [citing <i>Cruz v. HomeBase</i> (2000) 83 Cal.App.4th 160, 167].) Plaintiffs did not allege sufficient facts with the required specificity to support Plaintiffs’ prayer for punitive damages. Plaintiffs did not allege sufficient facts to state Plaintiffs’ sixth cause of action for fraudulent inducement concealment. Plaintiff did not allege sufficient facts to seek punitive damages against a corporation. Plaintiff may not seek punitive damages for a Song Beverly Act violation. The Song-Beverly Act provides for civil remedies and does not provide for punitive damages. (Civ. Code, § 1794.) California courts have explained that civil penalties “have been likened, by courts, to punitive damages.” (<i>Suman v. Superior Court</i> (1995) 39 Cal.App.4th 1309, 1317, citing <i>Kwan v. Mercedes-Benz of North America, Inc.</i> (1994) 23 Cal.App.4th 174, 184.) A plaintiff may not recover both civil penalties <i>and</i> punitive damages “based upon substantially the same conduct.” (<i>Troensegaard v. Silvercrest Industries, Inc.</i> (1985) 175 Cal.App.3d 218, 226.) Accordingly, Toyota’s motion to strike is granted with 15 days leave to amend. Toyota shall give notice.
9.	2025-1508956 Trejo vs. Cambria Hotel & Suites Anaheim Resort	DEMURRER Defendants Aimbridge Hospitality, LLC’s, Celeste McNees’, Charles McNees’, and CS Anaheim Hotel Investments, LLC’s general demurrer to Plaintiff Erika Trejo’s Complaint is sustained with 15 days leave to amend. The special demurrer is overruled. Plaintiff’s Complaint is not so confusing that Defendants cannot determine tell what they are supposed to respond to. (See <i>Khoury v. Maly’s of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139.) Plaintiff’s opposition was not filed and served until 7/16/26. It was due 9 Court days before the hearing on 7/9/26 pursuant to Code Civ. Proc., § 1005(b). No explanation as to the lateness was provided in the briefing. Also, Plaintiff’s opposition exceeds the 15-page limit under CRC, Rule 3.1113(d), as it is 19 pages. Additionally, the opposition lacks a table of contents and authorities. (See CRC, Rule 3.1113(h))

(“memorandum that exceeds 10 pages must include a table of contents and a table of authorities.”.)

The Court thereby exercises its discretion and declines to consider Plaintiff’s late and non-compliant briefing. (See CRC, Rule 3.1113(g), CRC, Rule 3.1300(d), *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765.)

A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (*Lambert v. Carneghi* (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.)

On demurrer, a complaint must be liberally construed. (CCP § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

1st cause of action for battery

“A battery is any intentional, unlawful and harmful contact by one person with the person of another. (*Delia S. v. Torres* (1982) 134 Cal.App.3d 471, 480, 184 Cal.Rptr. 787; and see Rest.2d Torts, § 18.) A harmful contact, intentionally done is the essence of a battery.” (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 611.)

Plaintiff’s allegations do not amount to battery against Defendants. No physical contact is alleged between Plaintiff and Defendants. (See *Gunnell v. Metrocolor Labs* (2001) 92 Cal.App.4th 710, 724-725 (“battery cannot be accomplished without a touching of the victim.”); (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 611 (“A harmful contact, intentionally done is the essence of a battery.”).)

Also, Plaintiff’s allegations with respect to the element of intent are lacking. While Plaintiff alleges Defendants knew about the bedbugs and intentionally failed to implement procedures to prevent and eradicate the infestations, there are no actual facts pled to support these conclusory claims.

4th cause of action for Intentional Infliction of Emotional Distress

The elements of Intentional Infliction of Emotional Distress are (1) Defendant's conduct was outrageous, (2) Defendant intended to cause Plaintiff emotional distress or acted with reckless disregard of the probability that Plaintiff would suffer emotional distress, (3) Plaintiff suffered severe emotional distress, and (4) Defendant's conduct was a substantial factor in causing Plaintiff's severe emotional distress. (CACI 1620.) "A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community...[and] intended to inflict injury or engaged in with the realization that injury will result." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–51.)

Plaintiff alleges she stayed only one night in the hotel, and that when she informed the front desk of the issue, they told her it might be mosquitos, offered to change the bedding, and they would have someone inspect the hotel room. (Complaint, ¶¶ 18-20.)

While Plaintiff alleges that Defendants had knowledge of other guest reviews reporting bedbugs at the hotels, she does not state anything more specific than this.

Plaintiff fails to allege facts to support intentional, extreme and outrageous conduct.

5th cause of action for fraudulent concealment

The elements of fraud are "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Causes of action for fraud are subject to stricter pleading standards; fraud must be plead with specificity. (*Committee on Children's Television v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216-227.)

Plaintiff alleges in this cause of action that Defendants were aware of the bedbug infestation in Plaintiff's room via unidentified online reviews and intentionally failed to inform Plaintiff of the infestation in order to turn a profit. (Complaint, ¶¶ 100, 110.)

These allegations are not specific enough to allege fraud. For example, Plaintiff fails to allege any details regarding the online reviews, such as when they were posted/when Plaintiff acquired this knowledge.

6th cause of action for private nuisance

Civ. Code, § 3479 states: “Anything which is injurious to health, including, but not limited to, the illegal sale of controlled substances, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin, or any public park, square, street, or highway, is a nuisance.”

Pursuant to *Koll-Irvine Center Property Owners Assn. v. County of Orange* (1994) 24 Cal.App.4th 1036, 1041, “private nuisance is a civil wrong based on disturbance of rights in land.”

Plaintiff fails to allege any rights in land.

Furthermore, Plaintiff’s claims - based on Defendants’ alleged failure to abate the bed bug infestation – are the same as those stated in support of Plaintiff’s negligence cause of action.

In *El Escorial Owners' Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337, the Court of Appeal affirmed the trial court’s ruling that the plaintiff could not maintain a nuisance cause of action seeking the same recovery as its negligence cause of action. (See also *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 543 (court affirmed the lower court’s sustaining of the demurrer to the nuisance cause of action without leave to amend because it “merely restate[d] their negligence claims “using a different label.”).)

Plaintiff does not request different relief in her nuisance cause of action than her negligence cause of action. The allegations are based on the same alleged tort.

7th cause of action for public nuisance

To allege a cause of action for public nuisance, Plaintiff must allege that Defendants a defendant created a condition that was harmful to health or interfered with the comfortable enjoyment of life or property; that the condition affected a substantial number of people at the same time; that an ordinary person would be reasonably annoyed or disturbed by the condition; that the seriousness of the harm outweighs the social utility of the defendant's' conduct; that the plaintiff did not consent to the conduct; that the plaintiff suffered harm that was different from the type of harm suffered by the general public; and that the defendant's conduct was a substantial factor in causing the plaintiff's harm. (See *Birke v. Oakwood Worldwide*, 169 Cal.App.4th 1540, 1548.)

Plaintiff states general allegations about bedbug infestations, but fails to plead that this specific bedbug infestation affected the general public. In addition, as with the 6th cause of action, Plaintiff's claims mirror those in her negligence cause of action.

8th cause of action for breach of contract

The elements of breach of contract are (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach." (*Miles v. Deutsche Bank National Trust Company* (2015) 236 Cal.App.4th 394, 402.) In pleading a breach of contract cause of action, plaintiff must allege whether the contract is written, oral, or implied by conduct. (See Code Civ. Proc., § 430.10(g); *Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal.App.3d 452, 458-459.)

Plaintiff's allegations are deficient as she does not attach a contract or allege any terms of the contract.

Based on the foregoing, Defendants' general demurrer is sustained in its entirety with leave to amend.

MOTION TO STRIKE

Defendants Aimbridge Hospitality, LLC's, Celeste McNees', Charles McNees', and CS Anaheim Hotel Investments, LLC's motion to strike Plaintiff Erika Trejo's Complaint is granted with 15 days leave to amend.

A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).) A motion to strike can also strike legal conclusions. (*Weil & Brown*, Cal. Prac. Guide, *Civil Proc. before Trial*, ¶ 7:179 (2010).) Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (*Perkins v. Superior Court* (1981) 117 Cal.App. 3d 1, 6.)

Defendants move to strike Plaintiff's claims for punitive damages.

Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if

		the plaintiff proves by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. “Malice” means conduct that is intended to cause injury or despicable conduct that is carried on with a willful and conscious disregard of the right and safety of others. (Civ. Code § 3294(c)(1).) At the pleading stage, the complaint must allege facts supporting circumstances of oppression, fraud, or malice. (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166 (“The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation].”).) Plaintiff admits that when she spoke to the front desk about the bed bug that the unidentified manager suggested that it was possibly mosquitoes, offered to change the bedding, and told her they would inspect the room. (Complaint, ¶¶ 18, 20.) This conduct does not support a finding of malice, oppression or fraud. Accordingly, the motion to strike Plaintiff’s punitive damages claims is granted. Defendants shall give notice of both rulings.
10.	2025-1502493 Plush Transportation , LLC vs. Pep Boys, LLC	The general and special demurrer by Defendant The Pep Boys Manny Moe & Jack of California LLC, erroneously sued and served as Pep Boys, LLC (“Defendant”) to the third cause of action for fraud – intentional misrepresentation alleged in the First Amended Complaint (“FAC”) filed by Plaintiff Plush Transportation, LLC (“Plaintiff”) is overruled in part and sustained in part with leave to amend. Defendant’s motion to strike the punitive damages allegations and prayer for exemplary damages and punitive damages from Plaintiff’s First Amended Complaint is granted with leave to amend. The Court once again reminds the parties of their obligation to comply with CCP section 1013b when electronically serving documents. DEMURRER TO FAC <i>Third cause of action for fraud – intentional misrepresentation</i> Defendant demurs to this cause of action on the grounds that the FAC failed to allege sufficient facts to state the third cause of action and is uncertain. (Demurrer, 3:2-3.) Defendant’s supporting memorandum does not discuss uncertainty. Accordingly,

Defendant’s special demurrer on the ground of uncertainty is overruled. (See, Cal. Rules of Ct., Rule 3.1113(a) [“The court may construe the absence of a memorandum as an admission that the motion or special demurrer is not meritorious and cause for its denial and, in the case of a demurrer, as a waiver of all grounds not supported.”].)

“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

The essential elements for intentional misrepresentation are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage. (*Chapman v. Skype Inc.* (2013) 220 Cal.App.4th 217, 230-231.)

Every element of fraud must be pleaded with specificity. The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) Nonetheless, “[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy.” (*Committee on Children’s Television*, 35 Cal. 3d at 216 [citation and internal quote marks omitted].)

Plaintiff did not allege sufficient facts with the required specificity to state this cause of action. Accordingly, the demurrer is sustained with 15 days leave to amend.

MOTION TO STRIKE FAC

General legal authority

Pursuant to Code of Civil Procedure section 436, the Court may:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)

“[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.)

Punitive damages

Plaintiff may recover exemplary damages in an action for the breach of an obligation not arising from contract if Plaintiff proves by clear and convincing evidence that Defendants are “guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294, subd. (c)(1).) Oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294, subd. (c)(2).) Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).)

Punitive damages cannot be pled in conclusory terms, instead the facts supporting a claim for punitive damages must be set out clearly, concisely, and with particularity. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) However, “it has long been recognized that ‘(t)he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree.’” (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.) “What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (*Id.*) In ruling on a motion to strike, the Court should “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *See Perkins*, 117 Cal.App.3d at 6 [“stricken language must be read not in isolation, but in the context of the facts alleged in the rest of petitioner’s complaint.”].)

“An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b); see, *Wilson v. Southern California Edison Co.* (2015) 234 Cal.App.4th 123, 164, citing *Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, 167 [“When the defendant is a corporation, ‘[a]n award of punitive damages against a corporation...must rest on the malice of the corporation’s employees.’”].)

As discussed above, Plaintiff did not allege sufficient facts to state the third cause of action for fraud. Accordingly, Defendant’s motion to strike paragraphs 57-60 is moot.

Plaintiff has not alleged sufficient facts with the required specificity to show malice, fraud, or oppression and did not allege sufficient facts to support punitive damages against an entity. Accordingly, the motion to strike paragraphs 71 and 72 and the prayer for exemplary and punitive damages is granted with 15 days leave to amend.

Defendant shall give notice.